



OFFICE OF THE POLICE COMMISSIONER
ONE POLICE PLAZA • ROOM 1400

August 2, 2021

Memorandum for: Deputy Commissioner, Trials

Re: **Inspector Elliot Colon**
Tax Registry No. 905982
Patrol Borough Brooklyn South
Disciplinary Case No. 2019-20395

The above named member of the service appeared before Assistant Deputy Commissioner Nancy R. Ryan on April 5, April 6, and April 8, 2021, and was charged with the following:

DISCIPLINARY CASE NO. 2019-20395

1. Inspector Elliot Colon, on or about October 26, 2017, at approximately 1038, while holding the rank of Deputy Inspector and assigned to 067 PCT and on duty, in the vicinity of [REDACTED] Kings County, engaged in conduct prejudicial to the good order, efficiency or discipline of the New York City Police Department, in that he arrested [REDACTED] "sister" without sufficient legal authority.

P.G. 208-01, Page 1, Paragraph 3

LAW OF ARREST

2. Inspector Elliot Colon, on or about October 26, 2017, at approximately 1038, while holding the rank of Deputy Inspector and assigned to 067 PCT and on duty, in the vicinity of [REDACTED] Kings County, engaged in conduct prejudicial to the good order, efficiency or discipline of the New York City Police Department, in that he arrested [REDACTED] "boyfriend" without sufficient legal authority.

P.G. 208-01, Page 1, Paragraph 3

LAW OF ARREST

3. Inspector Elliot Colon, on or about October 26, 2017, at approximately 1038, while holding the rank of Deputy Inspector and assigned to 067 PCT and on duty, in the vicinity of [REDACTED] Kings County, engaged in conduct prejudicial to the good order, efficiency or discipline of the New York City Police Department, in that he arrested [REDACTED] "uncle" without sufficient legal authority.

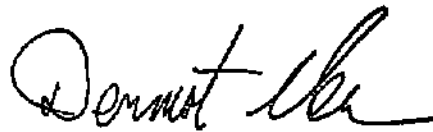
P.G. 208-01, Page 1, Paragraph 3

LAW OF ARREST

In a Memorandum dated June 11, 2021, Assistant Deputy Commissioner Nancy R. Ryan found Inspector Elliot Colon Guilty of all Specifications in Disciplinary Case No. 2019-20395. Having read the Memorandum and analyzed the facts of this matter, I approve the findings, but disapprove the penalty.

After reviewing the facts and circumstances of this matter, the Police Commissioner has determined that the proposed penalty does not adequately address the committed misconduct in this case and a higher penalty is necessary. Based on Inspector Colon's rank, position and role during this particular event I find that the aggravated penalty under the Disciplinary System Penalty Guidelines ("Matrix") is appropriate in this matter.

Therefore, Inspector Colon shall forfeit forty-five (45) vacation days, as a disciplinary penalty.

A handwritten signature in black ink, appearing to read "Dermot Shea", with a stylized, cursive script.

Dermot Shea
Police Commissioner



POLICE DEPARTMENT

6/11/2021

-----X
In the Matter of the Charges and Specifications :

- against - :

Inspector Elliot Colon :

Tax Registry No. 905982 :

Patrol Borough Brooklyn South :

Case No.

2019-20395

-----X
At: Police Headquarters
One Police Plaza
New York, NY 10038

Before: Honorable Nancy R. Ryan
Assistant Deputy Commissioner Trials

APPEARANCES:

For the CCRB-APU:

Jonathan Fogel, Esq.
Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

For the Respondent:

Louis C. La Pietra, Esq.
La Pietra & Krieger, P.C.
30 Glenn Street, Suite 105
White Plains, NY 10603

To:

HONORABLE DERMOT F. SHEA
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NY 10038

CHARGES AND SPECIFICATIONS

1. Inspector Elliot Colon, on or about October 26, 2017, at approximately 1038, while holding the rank of Deputy Inspector and assigned to 067 PCT and on duty, in the vicinity of [REDACTED] Kings County, engaged in conduct prejudicial to the good order, efficiency or discipline of the New York City Police Department, in that he arrested [sister] without sufficient legal authority.

P.G. 208-01, Page 1, Paragraph 3

LAW OF ARREST

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P.G. 208-01, Page 1, Paragraph 3

LAW OF ARREST

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P.G. 208-01, Page 1, Paragraph 3

LAW OF ARREST

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on April 5, April 6, and April 8, 2021. Respondent, through his counsel, entered a plea of Not Guilty to the subject charges. The CCRB called Police Officer Samantha Mercado and CCRB Manager of Investigations Carlmais Johnson as its witnesses. Respondent called Sergeant Charles Schwartz as a witness, and testified on his own behalf. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review. Having reviewed all of the evidence in this matter, I find Respondent Guilty of all three specifications and recommend a penalty of the forfeiture of 15 vacation days.

ANALYSIS

It is undisputed that on October 26, 2017, EMS responded to a house in Kings County after a mother (hereinafter "mother"), who lived in the home, called 911 when her son (hereinafter "aided") was suffering from cardiac arrest. Aided's sister (hereinafter "sister") and sister's boyfriend (hereinafter "boyfriend") entered the house after EMS arrived at the scene. While treating aided in his second floor bedroom, EMS personnel found two firearms under the mattress in the room and requested police presence. Police, including Officer Mercado, who was first on the scene, and Respondent, who arrived later, responded to the location. EMS proceeded to remove aided to the hospital, and mother followed aided there. Aided's uncle (hereinafter "uncle") then arrived and entered the house. Respondent ordered a search warrant he obtained for the house and that uncle, sister, and boyfriend be arrested. The three individuals were arrested, charged with the criminal possession of a weapon, and transported to the 67 Precinct. After approximately 12 hours, the three individuals' arrests were voided and they were released from the precinct.

The issue in this case is whether Respondent had sufficient legal authority to arrest uncle, sister, and boyfriend.

None of the three individuals arrested on October 26, 2017, testified at trial. Rather, CCRB offered the verified in-person interview hearsay statements of sister (CCRB Exs. 1A-1B), boyfriend (CCRB Exs. 12A-12B), and mother (CCRB Exs. 3A-3B). Also admitted into evidence was the hearsay telephone interview of sister by CCRB. (CCRB Ex. 2A-2B)

In her CCRB interviews, sister told investigators that on October 26, 2017, at approximately 1005 hours, she received a phone call from mother, informing her that she had called 911 after aided had collapsed and was not breathing. Sister stated that she immediately left her apartment with boyfriend and went to mother's house, where FDNY and EMS had

arrived and were working on her brother upstairs. Sister observed two police officers walk into the house and proceed upstairs. The officers communicated to sister and boyfriend that it was normal procedure for police to respond to the scene of an unresponsive male 911 call.

Approximately five minutes later, EMS and FDNY brought aided downstairs on a stretcher, and a male officer informed her that they were able to resuscitate him. Sister stated that she found it strange that aided was covered with a sheet on the stretcher with his hands not placed at his sides. She thought that he may have been handcuffed underneath the sheet. (CCRB Ex. 1A at 3-4; CCRB Ex. 2A at 14-16, 54-55)

Sister told CCRB investigators that, while aided was being transported to the hospital via ambulance and mother was following in an FDNY truck, she and boyfriend stayed at the house since more police officers had arrived. Sister and boyfriend went upstairs and observed three or more police officers searching aided's room. An officer told boyfriend that they had found guns, and sister overheard that the officers could not find a match for the serial number. She stated that she went downstairs to let uncle, who was in his seventies, into the house and explain the police presence to him. When she attempted to walk back upstairs, boyfriend informed her that the police wanted the three of them to stay downstairs. Additional uniformed officers and plain-clothes detectives entered the home and instructed sister to stay downstairs for the officers' safety while they searched aided's room. After an officer with a white shirt entered the home, another officer told her, "I'm sorry, I'm going to have to cuff you until my sergeant, or whoever leaves." The officer proceed to handcuff sister in the front, handcuff uncle in the front, and handcuff boyfriend from the back. Sister explained that they waited while handcuffed for some time before the officer with the white shirt walked downstairs and told them that they were taking the three of them in for questioning. He assured them that they were not under arrest. Sister explained that they begged the officers not to take them to the precinct, and told them that

uncle was only there to check on aided. The three of them told the officers that they did not live at the house, but the officers still took them to the precinct. (CCRB Ex. 1A at 4-7, 43; CCRB Ex. 2A at 16-19)

Sister informed CCRB investigators that uncle, boyfriend, and she were transported to the precinct. Her hat, belt, shoelaces, and jacket were taken from her, and she was placed in a precinct cell. Her uncle and boyfriend were also held in precinct cells. She stated she kept asking officers, "What's going on? Are we here for questioning? When are we going to get questioned?" Sister explained that no one would provide her with answers, but she kept asking for the name of her arresting officer. She was told that she was not under arrest, and that she was there for questioning. At approximately 2350 hours, sister, boyfriend, and uncle were each questioned individually regarding the guns that the officers found in mother's home. Sister explained that she did not have any knowledge of the presence of any weapons in the house. She relayed in her CCRB interviews that uncle, boyfriend, and she were detained at the precinct for a total of approximately 12 hours, until "minutes 'til 12:00 midnight." At no point throughout the incident was sister told that she was under arrest; instead, she stated that she was repeatedly reminded that she was not under arrest. (CCRB Ex. 1A at 8, 12, 19-21, 47-48; CCRB Ex. 2A at 21, 23-24)

The statements boyfriend¹ made to CCRB investigators were similar to sister's statement regarding their arrival to the house, the events that occurred while present in the house, and their arrest experiences. Boyfriend further stated that aided's hands were handcuffed across the front of his body while he was on the stretcher being brought downstairs by EMS. He also described the officer with a white shirt, who instructed two other officers to handcuff uncle, sister, and

¹ Boyfriend had two prior criminal convictions. In 2008, boyfriend pled guilty to N.Y. Veh. & Traf. Law § 600(2)(a), leaving the scene of an accident, which is a class E felony. In 2014, boyfriend pled guilty to N.Y. Penal Law § 120.20, reckless endangerment in the second degree, which is a class A misdemeanor. (Tr. 166-167)

himself, as a slightly heavysset Hispanic male in his 50s or 60s with black salt and pepper hair. Boyfriend explained that, at the precinct, officers first questioned uncle for approximately three or four minutes before they questioned him for approximately seven or eight minutes. After the questioning was completed, approximately 15 minutes later, the officers released uncle, sister, and boyfriend around 2400 hours. He also stated that they were held at the precinct for approximately 12 hours without being provided food or water. (CCRB Ex. 12B at 3-15, 17, 30, 38-39, 43-44, 61-62, 83-85)

A photograph of boyfriend's driver's license contained in the CCRB case file was admitted into evidence as CCRB Ex. 11A. The address on boyfriend's license was different from the address of the house where the guns were recovered. (Tr. 136-137, 140-142, 146)

The statements mother made to CCRB investigators were similar to the events described in the statements made by both sister and boyfriend in their CCRB interviews regarding calling 911, the arrival of the emergency response teams, sister and boyfriend, and mother's departure to the hospital. Mother told CCRB investigators that she was unsure if aided was handcuffed in the ambulance, as they did not grant her access inside the vehicle. She also stated that, when neither sister or uncle were answering her phone calls, she left the hospital and went back to her house where she was informed that sister and uncle were taken to the precinct. Shortly thereafter, mother explained that officers at the scene arrested her and transported her to the precinct, where she was placed in a cell next to sister. She further explained that she stayed in the cell until officers took uncle, sister, and her to another room for questioning regarding the firearms found in aided's bedroom. (CCRB Ex. 3B at 3-7, 11-13, 18-19)

Police Officer Samantha Mercado testified that on October 26, 2017, she was assigned as a patrol officer with the 67 Precinct when she received a call over dispatch² regarding an individual in cardiac arrest, at approximately 1040 hours. When Officer Mercado arrived at the scene with her partner, FDNY and EMS told them that they found two guns upstairs. Officer Mercado stated that she entered the house and observed two females and two males on the first floor speaking with EMS and FDNY. She then proceeded upstairs to the second floor where EMS and FDNY were removing aided from one of the bedrooms on a stretcher. Other than EMS and aided, she did not observe anyone coming out of the bedroom, nor did she see anyone enter the bedroom. Officer Mercado explained that after EMS removed aided from the bedroom, she poked her head inside the bedroom and observed two firearms on the box spring of the one bed in the room. In the same room, she also saw personal items, including clothing and letters, which she believed belonged to aided. She then called for her supervisor, Sergeant Badillo³ to come to the scene, which was protocol due to the presence of the firearms. She secured the bedroom by guarding the door to ensure no one entered the room while she waited for Sergeant Badillo to arrive. At no point during the time she guarded the door, nor at any other time while she was in the house, did she see civilians in the upstairs area of the house. The four civilians she saw when she entered the house remained downstairs. (Tr. 43-52, 64-66, 77)

Officer Mercado testified that when Sergeant Badillo arrived, they checked the two firearms and found that they were not registered. Additional supervisors, including Respondent, arrived at the scene, and Officer Mercado was instructed by a supervisor to obtain a search

² The Dispatcher Event Chronology document was admitted into evidence as CCRB Ex. 8, wherein the comments stated, "PLZ SEND RMP, FOR POSSIBLE WEAPON FOUND UNDER MATTRESS AS PER EMS SUPERVISOR ONSCENE" at 10:59:57 hours on 10/26/2017.

³ The transcript misspelled Sergeant "Badillo" as Sergeant "Padillo."

warrant⁴ based on the two firearms found in the bedroom. Officer Mercado testified that she was also instructed by one of the supervisors that the civilians were to be "arrested to be questioned." They were then arrested and transported to the precinct at approximately 1220 hours. The search warrant, which was obtained from a judge, was executed at approximately 1830 hours. The two firearms found under the mattress, four magazines and three imitation firearms were recovered.⁵ Also recovered from the bedroom where EMS attended the aided was a Macy's bill with the aided's name on it. Officer Mercado did not find any documents belonging to anyone other than aided in the bedroom. She arrived back at the precinct, at approximately 2000 hours. At some point after that, she and a detective questioned the four civilians who had been arrested for no more than approximately 10 to 15 minutes. The civilians were asked whether they knew who the guns belonged to; they said they did not. After the interviews, the four family members (uncle, sister, boyfriend, and mother) were released from the precinct and their arrests were voided. Aided's arrest for the criminal possession of a weapon was not voided. (Tr. 52-53, 55-66, 68-70, 85-86, 88, 95, 111-112, 118)

On cross-examination, Officer Mercado testified that, in her experience, when firearms are found, everyone essentially is removed to the stationhouse. She stated that this was not an unusual occurrence. Officer Mercado explained that she was not instructed by any of her supervisors to talk with the family or conduct interviews of the family about the guns at the scene. Nobody in the house told her that they, or the aided, owned the guns, nor did aided have the ability to speak at the time. She testified that Respondent did not instruct her to handcuff the individuals in the front or rear, place the individuals in a cell, or state that the individuals were

⁴ The Warrant Compartment Incident File Report (CCRB Ex. 5) stated that officers responded to a male aided when they were informed by EMS personnel that there were firearms under the mattress of aided's bed. (Tr. 119-120)

⁵ The Search Warrant Post Execution document indicates that aided was the perpetrator arrested and that he was apprehended inside of the house. (CCRB Ex. 6)

unable to leave the stationhouse. Officer Mercado relayed that she did not interact with Respondent after he left the scene. (Tr. 52-64, 83-85, 93, 108-109)

Sergeant Charles Schwartz testified that he was assigned as the Special Projects sergeant in October 2017. He stated that he was performing administrative duties at the 67 Precinct when Respondent received a phone call to respond to an incident scene, at approximately 1130 hours. Sergeant Schwartz arrived at the scene with Respondent and a detective at approximately 1200 hours, where EMS personnel and police officers were already present. When he walked through the front door of the home, Sergeant Schwartz observed three to five people sitting on the couch on the first floor, while a few officers were securing the area. He stated that he never spoke to the individuals or EMS personnel at the scene nor did he check the civilians' identifications since Sergeant Badillo, the Patrol Supervisor, had the scene secured, and Respondent never gave him instructions to do so. Sergeant Schwartz described the scene as "pretty chaotic" and "a high energy situation" due to the family members being concerned for the individual in cardiac arrest, EMS personnel yelling for equipment, and patrol officers dealing with the firearms found. (Tr. 178-180, 198-200, 204, 206, 211)

Sergeant Schwartz recalled, "[w]e were just there to kind of assist and make sure everything was good and then we left" the location after approximately five to ten minutes, while the individuals were still in the house, not handcuffed. Sergeant Schwartz testified that the decision to seek a search warrant application was made before Respondent and he arrived at the scene, since firearms were found and it was unknown if additional firearms were in the house. He stated that the decision to freeze the location, which prohibited individuals from entering or leaving the location until the Evidence Collection Team arrived to handle the firearms, was also made prior to their arrival. Sergeant Schwartz explained that, when firearms are involved, "we would bring everyone back to the precinct, you know, to determine exactly whose firearms they

are and where they came from, and things of that nature.” He further stated, “[e]veryone is brought back to the precinct pending the approval of the search warrant from judge,” and confirmed that they are brought back in handcuffs. (Tr. 182-183, 187-189, 200-201, 204)

Respondent testified that he became the Commander of the 67 Precinct on September 25, 2017, and, thereafter, was responsible for knowing and understanding the contents of the CompStat Report covering the period of 10/16/2017 through 10/22/2017, prepared on 10/23/2017 (Resp. Ex. B). He explained that the CompStat Report stated the percentage of shooting victims in the 67 Precinct increased by 600% in 2017 from 2016 for the week to date, and shooting incidents increased by 300% in 2017 from 2016 for the week to date. He also stated that, from September 25, 2017 to the date of the incident, October 26, 2017, there were 19 confirmed shots fired jobs. Respondent testified that, during this time when he had just started at the command, he was “overwhelmed” and “the closest [he] came to retirement” due to the shootings in the community, which were a “big issue” after an individual was shot during a community council meeting. (Resp. Ex. B; Tr. 223-224, 228-232, 236-240)

Respondent recounted that on October 26, 2017, he received a call from Sergeant Badillo,⁶ who communicated to him that two guns were found inside a bedroom. Respondent arrived at the scene and briefly spoke only with Sergeant Badillo, who told him that EMS had called NYPD after recovering firearms in plain view in the bed where they were working on aided. He walked into the house, viewed the layout, and observed the civilians in the living room on the first floor. Respondent then went upstairs, “took a quick peek” in the bedroom where EMS had found aided, and observed one firearm on the box spring. He proceeded to step out of the room, as he did not want to contaminate the area. (Tr. 240-241, 250-251, 256-264)

⁶ The memo book of now retired Sergeant Angel Badillo was admitted into evidence as CCRB Ex. 7, wherein he wrote that, at 1123 hours, he “notified D I Colon” and, at 1218 hours, “3 under in regards to C.P.W. ([Aided]) DOB [Date Omitted] [Aided] removed to Downstate in regard to 10-54.” (Tr. 121-123)

Respondent explained that he ordered a search warrant (Resp. Ex. C) be obtained since, in his experience, when a firearm was recovered there were usually more present. He also ordered the officers to freeze the house so that individuals inside the home were not permitted outside and individuals outside the home were not permitted to come inside. Respondent stated that he was at the house for approximately 10 to 15 minutes before leaving the scene with Sergeant Schwartz. He did not observe other individuals in the bedroom. He also did not recall having conversations about seeing any individuals, other than EMS or aided, inside the bedroom or seeing any civilians removed from the bedroom. He testified that he did not have any conversations with EMS personnel or Officer Mercado. (Tr. 240-241, 250-255, 272-273, 282)

Respondent testified that he ordered the arrests of the three civilians at the scene. He believed that there was probable cause because he had "a situation where I have an aided that's being worked on, they find -- EMS finds firearms, I have individuals in a house that are not cooperating with the police, I have no way of knowing that this room that this individual was in was his room." He stated that he was aware that arrests must be based on probable cause, and this instruction was contained in the Patrol Guide section 208-01 (CCRB Ex. 13) and the New York State Criminal Procedure Law. Respondent stated that he was unaware of any section in the Patrol Guide or NYPD training that allows for Members of the Service to arrest everyone present in a house if a gun was found in the home. (Tr. 240-241, 245-249, 251, 279)

Respondent further explained that he assumed the civilians present lived at the house, and was not informed that they did not live there. He stated that, even if he knew that none of the individuals lived at the house, he did not know if he would have done anything differently since they had to account for the guns and they did not know who the guns belonged to. Respondent was in a situation with an "unusual set of circumstances," where two firearms were found and he was unable to ask aided if they were his guns or if the room was his since he was being worked

on by EMS. He stated that he could not have conducted an investigation of the civilians at the scene. Respondent recalled, "[t]he scene was – it was too much going on. I had FDNY, EMS, PD, civilians, just to control the area. I had to have everybody removed to the precinct and unfortunately that means they have to be arrested." He specifically testified that there were a lot of EMS and FDNY at the scene. He also confirmed that Officer Mercado correctly testified that the civilians were going to be brought back to the precinct for investigation. (Tr. 241-244, 266, 269-270, 275)

After the civilians were removed from the scene, Respondent testified that he did not have any further interaction with the arresting officer or the civilians. At the stationhouse, he was not asked if the civilians could be cut loose nor did he give instructions that the civilians were not allowed to leave or that they were to be placed in holding cells. Respondent explained that the civilians' arrests were voided, although he was not involved in the voided arrest procedure. (Tr. 243-244, 284)

Respondent is charged in Specifications 1, 2, and 3, with arresting three individuals, sister, boyfriend, and uncle, without sufficient legal authority. Under Patrol Guide Section 208-01, page 1, paragraph 3(b) (eff. August 1, 2013), an officer may make an arrest without a warrant for a crime (within his/her presence or not) where reasonable cause exists that the arrested person committed the crime. This standard is reiterated in N.Y. Criminal Procedure Law Section 140.10(1)(b), which states that a police officer may arrest an individual for a felony or misdemeanor crime when the officer has "reasonable cause to believe" that the individual committed the crime, even if the crime did not take place in the officer's presence. In defining reasonable cause pertaining to arrests, Section 70.10(2) of N.Y. Criminal Procedure Law provides that, "Reasonable cause to believe that a person has committed an offense exists when evidence or information which appears reliable discloses facts or circumstances which are

collectively of such weight and persuasiveness as to convince a person of ordinary intelligence, judgment and experience that it is reasonably likely that such offense was committed and that such person committed it."

In case law, reasonable cause has been equated with probable cause. *People v. Maldonado*, 86 N.Y.2d 631 (1995); see also *People v. Johnson*, 66 N.Y.2d 398, 402 n.2 (1985). A probable cause determination "does not require proof sufficient to warrant a conviction beyond a reasonable doubt but merely information sufficient to support a reasonable belief that an offense has been or is being committed." *Nolasco v. City of N.Y.*, 131 A.D.3d 683 (2d Dept. 2015), quoting *People v. Bigelow*, 66 N.Y.2d 417, 423 (1985); see also *Colon v. New York*, 60 N.Y.2d 78, 82 (1983). Put simply, an arrest "is not unlawful so long as the officer has knowledge of, or reasonably trustworthy information as to, facts and circumstances sufficient to provide probable cause to believe that the person arrested has committed any crime." *Zellner v. Summerlin*, 494 F.3d 344, 369 (2d Cir. 2007).

Based on the facts of this case, I find that Respondent did not have reasonable cause to believe that sister, boyfriend, and uncle committed the crime of criminal possession of a weapon. An officer must have individualized probable cause for each person arrested. Respondent failed to articulate probable cause for any of the three arrests he ordered in this case.

The crime of criminal possession of a weapon has the necessary element of possession. Possession may be found in situations where there is, "evidence either of 'actual' possession (being in direct physical control of weapons), or of 'constructive' possession ('knowingly [having] the power and the intention at a given time to exercise dominion and control over an object, either directly or through others')." *United States v. Alexander*, 1997 U.S. App. LEXIS 31869 (2d Cir. 1997), citing *United States v. Hastings*, 918 F.2d 369, 373 (2d Cir. 1990); see also *People v Hunt*, 185 A.D.3d 1531 (4th Dept. 2020). Under N.Y. Penal Law Section 10.00

(8), to "'possess' means to have physical possession or otherwise to exercise dominion or control over tangible property." When Respondent ordered the three arrests, he did not possess facts to support either actual or constructive possession of the two guns found on the mattress.

With regard to actual possession, Respondent had no information that any of the three individuals had the guns on their person or were in direct physical control of them. Respondent testified that he only spoke to Sergeant Badillo at the scene and the information Sergeant Badillo relayed to him was that EMS had discovered firearms in plain view on a bed where they found aided.

Respondent also did not have sufficient facts to base the arrests on a theory of constructive possession. Under New York case law, "the rule has long been that to support a charge that a defendant was in constructive possession of tangible property, the People must show that the defendant exercised 'dominion or control' over the property by a sufficient level of control over the area in which the contraband is found." *People v. Manini*, 79 N.Y. 2d 561, 573 (1992). It is also settled that a person's mere presence in an apartment or house where contraband is found is not a sufficient basis for a finding of constructive possession. *People v. Edwards*, 206 A.D.2d 597 (3d Dept. 1994), citing *People v. Headley*, 74 N.Y.2d 858, 859 (1989); see also *People v. Butts*, 177 A.D.2d 782, 784 (3d Dept. 1991).

A Department Legal Bulletin (Vol. 43, No. 3, Nov. 2013), which Respondent, especially as a high ranking supervisor, is tasked with being aware of, confirms that under the doctrine of constructive possession, even in situations where individuals are residents⁷ of a dwelling, officers

⁷ The Bulletin goes on to instruct officers to verify who resides in the searched location and advises that this can be done by conducting phone or computer checks to determine residency. This instruction could just as easily have been followed in the arrest situation in this case. Respondent, however, failed to take the minimal amount of time to conduct such a check or to order any of his subordinates on the scene to conduct a check. Whether the arrestees were or were not residents would not have been dispositive on the issue of probable cause, but it would have been an important fact in making conclusions about constructive possession.

only have probable cause to arrest anyone who resides in a dwelling when: - contraband is found in plain view, **and**- it reasonably appears that all residents of the dwelling **exercised dominion and control over the area where contraband was found.**" (emphasis added)

The Bulletin gives the following examples of situations where constructive possession may be found:

- An individual found in the premises is the sole occupant of a room from which officers recover contraband in plain view.
- Officers recover contraband that is in plain view of the individual(s) found in the searched premises.
- Officers recover an individual's personal effects in the searched premises. Personal effects include :
 - driver's licenses
 - passports
 - birth certificates
 - Social Security cards
 - credit cards
 - photographs depicting the individual(s)
- The individual(s) found in the premises admit to possession of or are seen in actual possession of a key to the premises, or to a locked room or closet from which officers recover contraband.
- An individual admits ownership of or regular residence in the searched location.

None of these examples apply in this case to justify the arrest of the three individuals for criminal possession of the guns. At the time he ordered the arrests of sister, boyfriend and uncle, Respondent had no information upon which he could have concluded that the three were in constructive possession of guns found in a bedroom on the bed where aided had been. Respondent merely saw civilians in a downstairs area. He did not question them nor did he have anyone else question them. The information he possessed from speaking only to Sergeant Badillo before he ordered the arrests was that the guns were in plain view of aided, not the arrestees. He also did not possess any information that there were any personal effects of any of the arrestees

in the room where the guns were found. In fact, Officer Mercado testified that when she looked into the room where aided was, she believed that the personal items she observed, which included clothing and letters on top of a dresser, belonged to aided. Respondent looked into the room and presumably could have seen these items as well as Officer Mercado did. Respondent also had no information that any of the three individuals had keys to the residence. They also did not admit ownership of the residence. In fact, they stated that they told the officers they did not live there.

Respondent's testimony, and the testimony of Officer Mercado, reveal the actual reason the arrests were ordered by Respondent. Rather than being based on probable cause that the three individuals possessed the two guns, the Respondent's primary reason for ordering the arrests was to be able to conduct an investigation to determine who the guns belonged to. Respondent testified that he couldn't conduct an investigation at the scene because there was "too much going on," explaining "I had FDNY, EMS, PD, civilians, just to control the area. I had to have everybody removed to the precinct and unfortunately that means they have to be arrested." (Tr. 243)

The tribunal acknowledges that when EMS are actively working on someone and there are relatives present, it may create a highly charged environment. In such situations, while probable cause is still required to effectuate arrests, there could potentially be mitigation of any misconduct where an officer has to make instant decisions amidst chaos. However, that is not the situation Respondent encountered in this case. Respondent and Sergeant Schwartz attempted to characterize the scene when they arrived as chaotic. Sergeant Schwartz went so far as to incredibly testify that there were "a ton of EMS personnel" present and EMS was yelling for other equipment they needed. Respondent also testified that there were a lot of EMS in the house. The aided, however, had been removed from the house by EMS approximately 45

minutes before Respondent and Sergeant Schwartz arrived there. Sergeant Schwartz testified that he and Respondent arrived at the scene at approximately noon and the Dispatcher Event information indicates that aided was being transported to the hospital at 11:15. (CCRB Ex. 8) Officer Mercado's testimony confirms that the aided was removed by EMS before Respondent and Sergeant Schwartz arrived. She called Sergeant Badillo to come to the scene after aided was removed by EMS. Respondent testified that Sergeant Badillo was there when he got to the scene. Additional evidence that aided had been removed in an ambulance before the arrival of Respondent is that mother was not in the house and therefore was not arrested when Respondent was there. According to the statements from sister and mother, mother followed the ambulance to the hospital.

Therefore, based on the chronology of the event, at the time Respondent arrived at the scene, there were the three civilians in the living room and some police officers present. The civilians were not causing chaos as Respondent testified they were not behaving in a disorderly manner. (Tr. 278) If there were too many police officers there, the number of officers on scene was certainly within Respondent's control as the highest ranking officer there.

There was no indication from his testimony, or from any other credible evidence concerning the status of the scene when he arrived, that Respondent had to make instant or very quick decisions. Respondent could have taken time to evaluate whether probable cause existed to arrest these three individuals. While the tribunal is not suggesting that Respondent had to make any specific inquiries himself, he did need to personally possess sufficient information to conclude there was probable cause for the arrests. In this case, he did not have information allowing him to conclude that the arrestees were in either actual or constructive possession of the two guns found on the bed. Respondent, in his March 7, 2019, CCRB interview, seemingly acknowledged that simply finding the firearms was not sufficient for the arrests. At trial,

Respondent confirmed the following exchange took place at the interview with the investigator regarding the arrests:

- Q. So when you said that the residents were placed under arrest, like, secondary to this incident, can you just explain what they were arrested for?
- A. There had to be other stuff that we found in plain view of the house, what, exactly, I don't remember so everybody was going [to] be arrested for that.
- Q. I'm sorry. I'm a little---what do you mean - -what do you mean when you said that there had to be other stuff that you found?
- A. There had to be other contraband, that, besides the firearms, within the house that we observed for us to take everybody in.

(Tr. 252-253)

In this case, arresting the three people present downstairs in a house, based solely on those two guns found on a mattress in an upstairs bedroom where aided was found, with no further information about their relationship to the guns, was not sufficient probable cause for the arrests. I therefore find Respondent Guilty of Specifications 1, 2, and 3.

PENALTY

In order to determine an appropriate penalty, the Tribunal, guided by the Department Disciplinary System Penalty Guidelines ("Disciplinary Guidelines"), considered all relevant facts and circumstances, including any aggravating and mitigating factors established in the record. Respondent's employment history was also examined. *See* 38 RCNY §15-07. Information from Respondent's personnel record that was considered in making this penalty recommendation is contained in an attached memorandum.

Respondent, who was appointed to the Department on February 28, 1994, has been found Guilty of arresting sister, boyfriend, and uncle without sufficient legal authority. The CCRB had initially requested a penalty loss of 25 vacation days in this case. However, at trial, CCRB requested a penalty loss of 45 vacation days based on the aggravated penalty for the seizure of a

person under the Disciplinary Guidelines-- 15 penalty days, multiplied by three due to the three specifications charged for each of the three individuals arrested in this matter. The CCRB APU prosecutor cited Respondent's rank and the nature and extended duration of the impact of his actions on the civilians as aggravating factors. (Tr. 353-354)

The Disciplinary Guidelines establish a presumptive penalty of the loss of three (3) penalty days for the wrongful seizure of a person, with a mitigated penalty of training and an aggravated penalty of 15 penalty days.

The Tribunal finds that a penalty closer to the presumptive penalty is more appropriate in this matter than the aggravated penalty recommended by CCRB. However, the Tribunal agrees with CCRB that some aggravating factors were present here, necessitating some increased penalty above the presumptive one.

The unwarranted arrests of the three individuals caused unnecessary distress to the civilians. They were taken out of the house in handcuffs and then were held in cells at the precinct for approximately 12 hours while their family member was in the hospital.

Respondent's position must also be taken into account as an aggravating factor. As discussed in the Disciplinary Guidelines, an individual Member of Service's supervisory status will generally be viewed as an aggravating factor. Respondent, with over 16 years of supervisory experience at the time of the incident, and having the rank of Deputy Inspector, is expected to know the Patrol Guide and the law, particularly a central tenet such as ensuring that arrests are based on reasonable cause. As the Disciplinary Guidelines also point out, supervisors are expected to lead by example. They are expected to exercise sound judgment and to be more deliberate in their actions than subordinate members. Respondent was acting on this day in the presence of subordinates and did not model exercising a deliberate process in making a determination to arrest civilians. Respondent acted in a very perfunctory manner. Without

having sufficient facts, he ordered the arrests of three individuals that he assumed were relatives of an aided based on extremely limited information after being present at the scene for approximately 10 to 15 minutes. He did not take even the minimal amount of time which would have been necessary to determine if the individuals lived in the house or to even explain to them that they were being arrested. He had no conversation at all with them and just improperly ordered that all three be arrested.

By way of mitigation, I reject the defense argument that the chaotic nature of the scene was a mitigating factor based on my analysis above. I do find mitigation in that Respondent's employment record reveals no prior formal disciplinary history throughout his 27-year career with the Department and high performance evaluations. On balance, I find a forfeiture of five (5) vacation days for each specification sufficient to address the misconduct.

For the above reasons, consistent with the Disciplinary Guidelines and having carefully considered the record before me, I recommend a combined penalty of the loss of 15 vacation days in total for Specifications 1, 2, and 3, as Respondent arrested three individuals without sufficient legal authority.

Respectfully submitted,



Nancy R. Ryan
Assistant Deputy Commissioner Trials





POLICE DEPARTMENT CITY OF NEW YORK

From: Assistant Deputy Commissioner – Trials
To: Police Commissioner
Subject: SUMMARY OF EMPLOYMENT RECORD
INSPECTOR ELLIOT COLON
TAX REGISTRY NO. 905982
DISCIPLINARY CASE NO. 2019-20395

Respondent was appointed to the Department on February 28, 1994. On his three most recent annual performance evaluations, Respondent received 4.5 overall ratings of "Extremely Competent/Highly Competent" for 2011, 2012, and 2013. He has been awarded three medals for Excellent Police Duty.

Respondent has no disciplinary record.

For your consideration.

Nancy R. Ryan
Assistant Deputy Commissioner Trials